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SECURITY



Serial spyware founder
Scott Zuckerman wants
the FTC to unban him
from the surveillance
industry



The founder of a spyware company who was banned from the surveillance industry following an earlier data breach is now seeking to undo the ban, according to the Federal Trade Commission.

In a notice on Friday, the [federal watchdog said](#) Scott Zuckerman sought to rescind or modify the 2021 ban imposed by the FTC on his company Support King and its subsidiaries.

The ban included a provision requiring Zuckerman to maintain certain cybersecurity practices and undergo frequent audits for any of his businesses, after his spyware subsidiary SpyFone in 2018 spilled thousands of people's private phone data, including photos, messages, and location data, to the public web.

The FTC's then five commissioners [unanimously voted](#) to ban Zuckerman and Support King from offering, selling, or promoting any phone-monitoring app, preventing him from operating in the surveillance industry.

Zuckerman now claims the order imposed an "unnecessary burden" because the financial costs needed to comply with the order made it more difficult for him to expand his other businesses.

The review of Zuckerman's petition is expected to be closely watched by privacy advocates and critics of the surveillance industry and could signal

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one of the first major cybersecurity tests for the Republican-controlled federal agency. If the agency moves to modify the order or vacate it entirely, it would pave the way for a surveillance vendor with a history of data breaches to legally operate again unimpeded.

Despite the ban taking effect in 2021, Zuckerman was caught involved in another spyware operation less than a year later.

In 2022, [TechCrunch received a cache of breached data](#) from the servers of a phone spyware app called SpyTrac, which revealed it was being run by a group of freelance developers with direct ties to Support King, likely to skirt the FTC's ban. The breached data also contained records from SpyFone, despite the FTC's order requiring the company to delete the data it illegally obtained from victims' phones, and contained keys that allowed access to cloud storage for OneClickMonitor, another clone spyware app that Support King shut down alongside SpyFone. SpyTrac went offline soon after we contacted Zuckerman for comment.

Zuckerman's petition is already facing criticism from the security community.

"I think this petition should be opposed loudly and vigorously. Mr. Zuckerman has repeatedly shown himself to be a bad actor, flouting the FTC by continuing to run his stalkerware company even after the ban was issued," Eva Galperin, the director of cybersecurity at the Electronic Frontier Foundation, told TechCrunch.

"There is no doubt that both the ban and the continued reporting requirements are personally burdensome to him, but I would argue that that is the point," said Galperin. "I have no doubt that Mr. Zuckerman would start up another stalkerware

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company the minute he thought he could get away with it.”

It’s not clear how the FTC will vote on Zuckerman’s petition, nor did the agency set a date. A spokesperson for the FTC did not comment when reached by TechCrunch. The FTC is required by law to seek comments on petitions to undo the agency’s orders.

The [public can leave feedback](#) on Zuckerman’s petition until August 19.

The FTC is chaired by Trump-appointed Andrew Ferguson, who serves alongside two other Republicans, Mark Meador and Melissa Holyoak. Democratic commissioner Rebecca Kelly Slaughter was reappointed to the FTC last week after the Trump administration [attempted to fire her](#). The remaining fifth commissioner seat remains vacant.

In his petition, Zuckerman appealed to Ferguson directly and the commission’s “current enforcement philosophy,” which Zuckerman told TechCrunch was about “making sure regulations actually provide a positive impact for consumers and the public.”

Galperin, meanwhile, said it was important to maintain the reporting requirements on Zuckerman’s future ventures if they are “in any way connected to the internet because he has repeatedly demonstrated that he cannot secure sensitive user data.”

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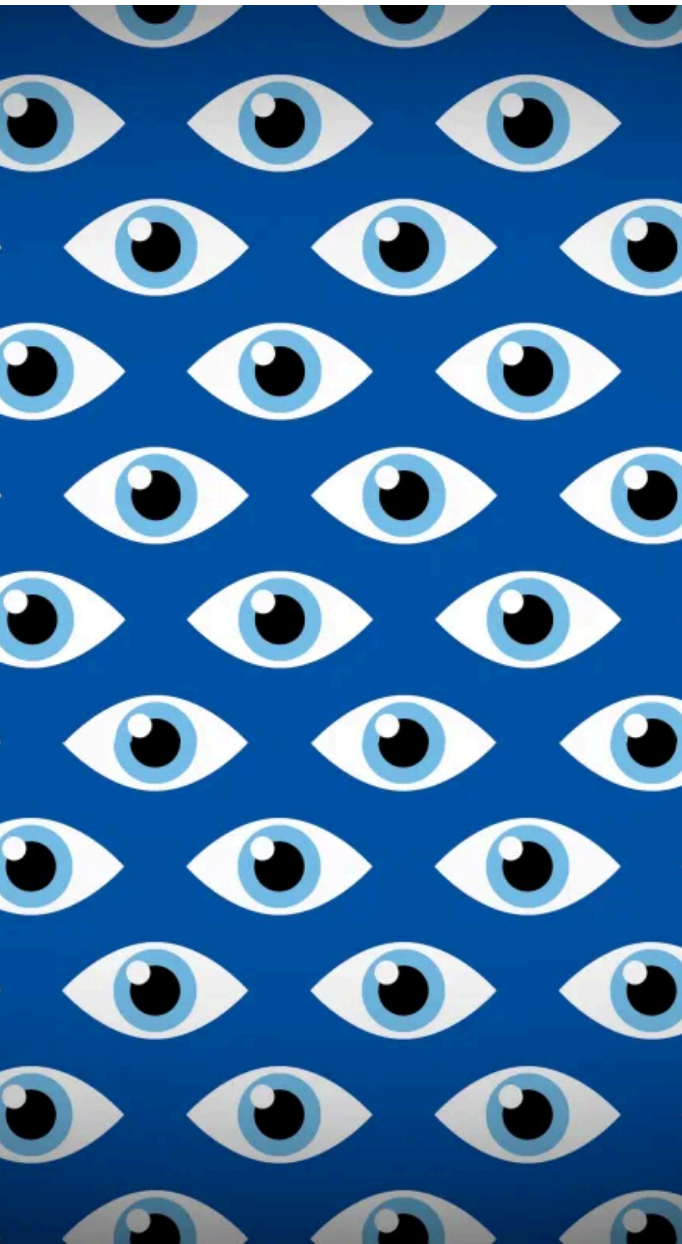
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FTC bans spyware maker SpyFone, and orders it to notify hacked victims

Zack Whittaker — 6:15 AM PDT · September 2, 2021

IMAGE CREDITS: [JAKE OLIMB](#) / GETTY IMAGES

The Federal Trade Commission has unanimously voted to ban the spyware maker SpyFone and its

chief executive Scott Zuckerman from the surveillance industry, the first order of its kind, after the agency accused the company of harvesting mobile data on thousands of people and leaving it on the open internet.

The agency said SpyFone “secretly harvested and shared data on people’s physical movements, phone use and online activities through a hidden device hack,” allowing the spyware purchaser to “see the device’s live location and view the device user’s emails and video chats.”

SpyFone is one of [many so-called “stalkerware” apps](#) that are marketed [under the guise of parental control](#) but are often used by spouses to spy on their partners. The spyware works by being surreptitiously installed on someone’s phone, often without their permission, to steal their messages, photos, web browsing history and real-time location data. The FTC also charged that the spyware maker exposed victims to additional security risks because the spyware runs at the “root” level of the phone, which allows the spyware to access off-limits parts of the device’s operating system. A premium version of the app included a keylogger and “live screen viewing,” the FTC says.

But the FTC said that SpyFone’s “lack of basic security” exposed those victims’ data, because of

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sanctions under U.S. computer hacking and wiretap laws.

The FTC has also ordered the company to delete all the data it “illegally” collected, and, also for the first time, notify victims that the app had been secretly installed on their devices.

In [a statement](#), the FTC’s consumer protection chief Samuel Levine said: “This case is an important reminder that surveillance-based businesses pose a significant threat to our safety and security.”

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The EFF, which launched the Coalition Against Stalkerware two years ago, a coalition of companies that detects, combats and raises awareness of stalkerware, praised the FTC's order. "With the FTC now turning its focus to this industry, victims of stalkerware can begin to find solace in the fact that regulators are beginning to take their concerns seriously," said EFF's Eva Galperin and Bill Budington in [a blog post](#).

This is the FTC's second order against a stalkerware maker. In 2019, the FTC settled with Retina-X after the company was hacked several times and eventually [shut down](#).

Over the years, several other stalkerware makers were either hacked or inadvertently exposed their own systems, including mSpy, Mobistealth, and Flexispy. Another stalkerware maker, ClevGuard, left thousands of hacked victims' phone data on [an exposed cloud server](#).

Read more:

[A 'stalkerware' app leaked phone data from thousands of victims](#)

[How to identify and remove KidsGuard 'stalkerware' from your phone](#)

['Stalkerware' phone spying apps have escaped Google's ad ban](#)

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[A domestic violence prevention app exposed distress recordings](#)

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If you or someone you know needs help, the National Domestic Violence Hotline (1-800-799-7233) provides 24/7 free, confidential support to victims of domestic abuse and violence. If you are in an emergency situation, call 911.

Did you receive a notification and want to tell your story? You can contact this reporter on Signal and WhatsApp at +1 646-755-8849 or zack.whittaker@techcrunch.com by email.

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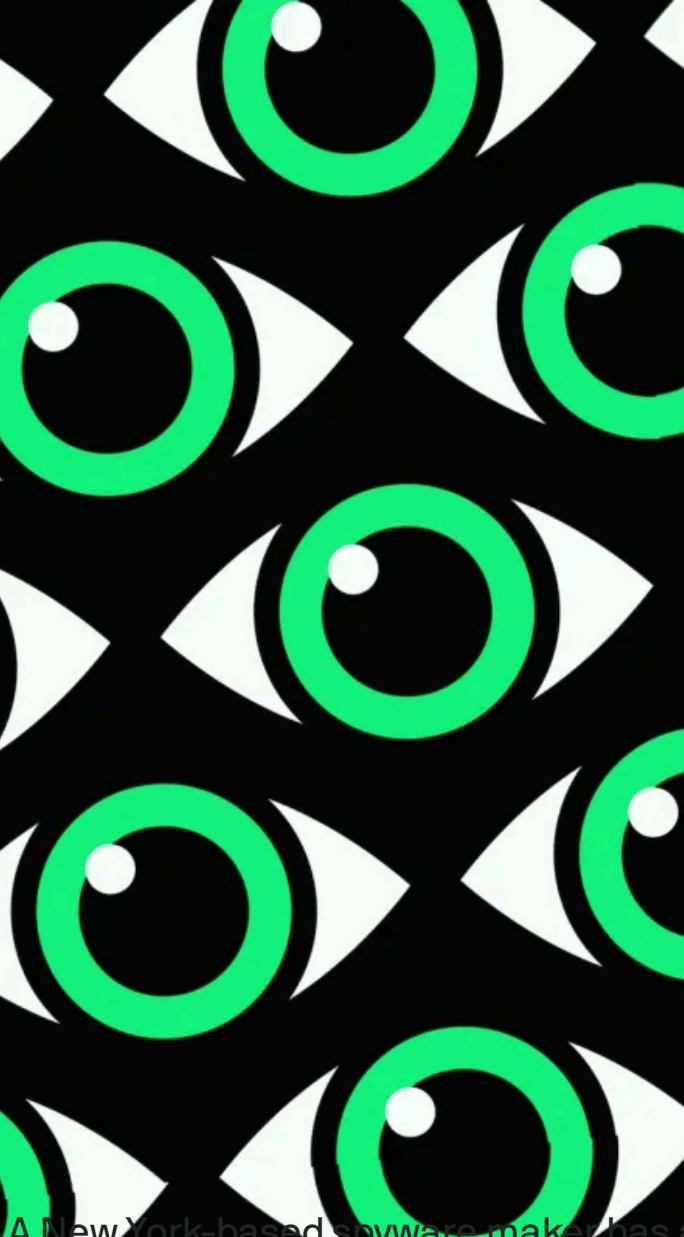
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New York attorney general orders stalkerware maker to notify hacked victims

Zack Whittaker — 8:19 AM PST · February 3, 2023

A New York-based spyware maker has agreed to notify the individuals whose phones were compromised by its mobile surveillance software, following a deal with the New York attorney general's office announced Thursday.

Under the agreement, Patrick Hinchey, whose 16 companies promoted apps like PhoneSpector and Highster, will also pay \$410,000 in civil penalties for illegally promoting the mobile surveillance software that allowed its customers to spy on another person's phone without their knowledge.

According to [the New York attorney general's office](#), the apps sold by Hinchey allowed his customers to secretly monitor a victim's phone and access their device data, including text messages and emails, photos, browsing history and precise location data. These apps, which require physical

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access to someone's phone, are known as stalkerware (or spouseware), as many are expressly advertised as a way of spying on a person's spouse or partner. Others are sold [under the guise](#) of child monitoring software.

In a statement, New York attorney general Letitia James said that Hinchy used his consortium of companies for "aggressively promoting" his stalkerware apps. James' office also accused Hinchy's companies of failing to disclose that customers would [have to jailbreak](#) — or root — a victim's device before they could plant the stalkerware, a process that can weaken the security of a person's device.

The agreement says that Hinchy must notify affected victims within 60 days that their device is being monitored. Hinchy must also make "accurate disclosures regarding endorsements, rooting and jailbreaking requirements, refund policies, and data security," per James' office.

But the agreement falls short of outlawing the apps completely.

In 2020, the U.S. Federal Trade Commission [banned](#) Retina-X after it was hacked [several times](#). A year later, the FTC also [banned](#) the stalkerware maker SpyFone and its parent company Support King from the surveillance industry. The FTC also instructed Support King to notify victims that their phones had been compromised.

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In December, TechCrunch reported that Support King had rebranded as a new stalkerware operation, SpyTrac, in an effort to [evade the FTC's ban](#). Following the publication of our investigation, both Support King and SpyTrac went offline.

It is not yet known exactly how many users — or victims — were ensnared by PhoneSpector, Highster and the other stalkerware apps. TechCrunch asked James' office and will update if we hear back.

Did you receive a notification that your phone was compromised? Get in touch on Signal and WhatsApp at +1 646-755-8849, or zack.whittaker@techcrunch.com by email. You can also send files and documents via [SecureDrop](#).

Read more:

[Behind the stalkerware network spilling the private phone data of hundreds of thousands](#)

[Inside TheTruthSpy, the stalkerware network spying on thousands](#)

[TheTruthSpy exposed: This spyware lookup tool says if your Android device was compromised](#)

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